

for their return. The King (out of the great care of their safety) referred their petition to the Lord Keeper Coventry, and that he, with the advice of the Judges, should consider by what way it might be done: and the eighteenth day of June we attended the Lord Keeper at Durham-House; and there upon conference and consideration of a former resolution which was at Reading in Mich. term last, before the said Lord Keeper (where were present all the Judges, besides my self). That these abusive habeas corpus were not lawful, and that the warden and marshal were then called and warned, that they should not suffer their prisoners to go into the country, as they had used to do, by colour of such writs: this which follows was subscribed.

We are of opinion, that the writ of habeas corpus is both ancient and legal; but as the writ doth not, so no rule can authorize the keeper of the prison to give liberty to his prisoner, by colour of such writ, but the same is an abuse against law, and an escape in the keeper, if he let the prisoner go by such writ.

We find, that neither in the twenty fourth year of Eliz. when the term was adjourned to Hertford. Nor in the 34th of Eliz. in which year it was adjourned to Hertford. Nor in the 35th of Eliz. in which year it was adjourned to St. Albans. Nor in 1 Jac. in which year the term was adjourned to Winchester. Nor in the first of King Charles, in which year it was adjourned to Reading. (In all which years there were great and dangerous infections of the plague) there was no such course to set prisoners out of prison by habeas corpus; but we find it a novelty begun of late years.

But we think, that if the danger of infection shall grow so great, as it shall be found necessary to provide for the safety of the prisoners (who may at all times provide for themselves by paying their debts, and yielding obedience to Justice) then a course may be taken that some certain house may be assigned for the warden of the Fleet, in some good Town, remote from the infection, and the like for the marshal of the Kings Bench, in some other town, where they may remove such prisoners as have been petitioners to His Majesty, and there keep them as prisoners, sub arcta & salva custodia, as they should be kept in their proper prisons, and not to be as house-keepers in their own houses; and by this means they will have the like to avoid the infection, as other subjects have, and not make the infection a cause to abuse their creditors, or delude the course of justice.

JOHN BRAMSTON	1.	HUMPH. DAVENPORT	6.
RICHARD HUTTON	2.	WILLIAM JONES	7.
GEORGE CROOKE	3.	THOMAS TREVOR	8.
GEORGE VERNON	4.	ROBERT BARKLEY	9.
FRANCIS CRAWLEY	5.	RICHARD WESTON	10.

To Sir JOHN BRAMSTON Knight, Lord Chief Justice of England.

My very good Lord,—I have acquainted His Majesty with your resolution, and your brethren, about writs of habeas corpus, His Majesty doth exceedingly approve the same, and hath commanded me to let you know, that His Majesty would not recede from that which you have certified, and prays you and the rest of my Lords the Judges, to observe it constantly, according to that resolution under your hands:—Your Lordship's assured,

THO. COVENTRY, C.S.

Hampton Court, 19 June, 1636.

[131] MICH. 14 CAR.

JUSTICE HUTTONS CASE *versus* HARISON.

Words against Justice Hutton. 1 Croke, 503.

Memorand. That 28 Aprilis, 14 Car. Justice Hutton argued in the Exchequer Chamber in the case adjourned thither, upon a scire facias by the King against Hampden for ship money, in which he was of opinion, that as well for the matter as for the form, upon divers exceptions to the pleading. Judgment shall be given against the King.

Afterwards, viz. 4 Maii, Thomas Harison Batchelor of Divinity, and Parson of Creake in Northamp. came to the Court of Common Bench (Justice Hutton, and

Justice Crawley then being there giving rules and orders) and said, I accuse Mr. Justice Hutton of high treason, for which he was committed to the custody of the warden of the Fleet by Justice Crawley; and after by the direction of the King, he was indicted in the Kings Bench, and convicted and fined five thousand pounds to the King: and Justice Hutton preferred his bill against him there, and recovered ten thousand pound damages.

LORD DIGBIES CASE.

Trial of a peer how, v. Devant, 116.

Memorand. That in the Parliament holden primo Car. It was resolved by the Judges upon conference concerning the Lord, Digby, that when any peer shall be proceeded against for treason, that ought to be by indictment, and that being done, then the King is to appoint a peer to be steward for the time, and then to proceed to arraign him, or otherwise to transmit this judgment by certiorari, to the Parliament, and there to proceed, vide 10 E. 4, 6, 1 H. 4, 1, vide Coke Lit. fol. 261 b. Or otherwise to prefer a bill in the Parliament, which ought to be passed by both houses, and then it is attainder by Parliament, and so it was done, 5 R. 2, 54.

But in this case, it being that part of the treason objected against him, was supposed to be done out le mere, and made treason by the Act of 3 Jac. cap. 4, that cannot be tried but by indictment, to be taken before the Justices of Assise, and Gaol-Delivery, where the party was taken, or before the Justices of the Kings Bench, any law, custome, statute, or usage to the contrary notwithstanding; and so it cannot be tried by the statute of 35 H. 8, cap. 2, in what place or shire that the Kings Bench shall be, for this statute had for this treason prescribed a special form of trial, and the place where he shall be taken shall be expounded, the place where he is imprisoned, as upon the Statute of Soldiers: and he which is charged to have two wives living, shall be tried in the place where he is taken, which is the place where he is imprisoned, vide 2 Inst. 49.

[132] TRIN. 12 CAR.

Queries concerning aliens.

Quæries upon the statutes of 1 R. 2, cap. 9, 1 H. 7, cap. 2, 14 H. 8, cap. 2, the decrees in the Star-Chamber made 20 H. 8, and confirmed 21 H. 8, cap. 16, 22 H. 8, cap. 8, 32 H. 8, 16, and other statutes concerning aliens, and the statute of 5 Eliz. cap. 4.

1. Whether the statute of 5 Eliz. cap. 4, doth repeal the former statutes concerning aliens, taking apprentices, journey-men, and servants.

2. Whether aliens made denizens, may use any handycraft within the realm, otherwise then as servants to the Kings subjects.

Memorand. That on the seventh day of July, we met at Serjeants Inne in Fleet-street (Mr. Attorney General being there) and we debated the matter, and upon perusal of the statute of 1 R. 3, cap. 9, and the other statutes: and upon some mis-recital of the Statute 1 R. 3, by the statute 32 H. 8, cap. 16. And upon differences of the printed statute from the Parliament roll, as was supposed, upon shewing of an old book of statutes, which was in French, and brought by my brother Crook; and upon the intricacy of the statute, we could not resolve on the sudden, upon these questions at this time, nor unless the Parliament roll might be seen.

But upon perusal of the statute of 5 Eliz. cap. 4, we all resolved and agreed.

That all aliens and denizens are restrained by the statute of 5 Eliz. cap. 4. That they may not use any handycraft mentioned in the said statute, unless they have served seven years as apprentices within this realm, according to the provision of this statute: this was set down in writing by Sir John Banks His Majesties Attorney General present: Sir John Bramston Chief Justice of England, Sir John Finch Chief Justice of the Common Bench, Sir Humphrey Davenport Chief Baron, Baron Denham, Justice Hutton, Justice Crook, Baron Trevor, Justice Crawley, and Baron Weston, the other Judges being absent, viz. Jones and Vernon.

HIL. 12 CAR.

SOUSER *versus* BURTON.

One widow Souser brought an action of the case against Burton, in these words, Thou old witch, thou old whore, leave off thy witching, or else thou shalt be hanged or burned, if I can do it. And upon not guilty pleaded, and verdict for the plaintiff, it was moved in arrest of judgment; and it seemed to Lord Finch, Hutton, and Vernon that the action lay not, without shewing that she did any act of witchcraft, for which the pain of pillory and imprisonment for two years should be inflicted, and the second time felony: and that the words, Thou art an old witch, or Go away thou old witch, are usual words, and old whore bears no action: and as to say, Thou shalt be hanged if I can do it, it is not possible that he could do it.

[133] But Justice Crawley doubted of it at first, because that it was alledged, that it had been adjudged in the Kings Bench, that an action lies for calling one witch; but afterwards he said, that he had spoken with the justices of the Kings Bench of their reason, who said, that they adjudged no such thing, unlesse that he spoke further, that the party had done any act of witchcraft punishable by the statute.

HUGLES *versus* DRINKWATER.

In account payment by appointment of the plaintiff, is no plea before the auditors where the issue was ne unques receiver.

An action of account by William Hugles against Thomas Drinkwater, for receipt of eighteen pounds, by the hands of one William Appowell, to the use of the plaintiff, the defendant plead ne unques receiver per manus, &c. and found for the plaintiff: and the defendant before the auditors plead, that he by the appointment of William Appowell had paid it to one John Marsh for the debt of the plaintiff, and thereupon demurrer. And adjudged a bad plea, and against his former issue: and the said Appowell by whose hands he received the said summ, had not any power to appoint the defendant to pay it to John Marsh, to whom the plaintiff was indebted; and if that had been pleaded in bar of the account, to have been done by the appointment of the plaintiff, it had been a good bar, vide Dyer, 29, 196, after ne unques receiver, and the truth was that he had been receiver, and had paid it over by the appointment of the party, and yet by this plea he hath lost the advantage thereof.

AN. 2 CAR.

In what cases a prisoner arraigned shall have counsell.

Memorand. That the 19 day of May, an. 2 Car. all the Judges being assembled at Serjeants Inn in Chancery Lane, by the commandment of the King, the Attorney General propounded, that the King would be satisfied by our opinion, whether any person which is arraigned of treason or felony, ought by the fundamental lawes of this realm to have counsell; and we all una voce answered.

That when any one is indicted of felony or treason, or any other such offence, the party ought not to have any counsell, unlesse it be upon matter in law, as where he demand sanctuary, or plead any special matter, and that is agreed by Stamford, fol. 151.

Also this extends as well to peers of the realm, as to others, vide 1 H. 7, 23, and the 9 E. 4, 2, and so it was agreed by all, that although the party shall have counsell in an appeal of murther, yet if he be non-suited, and the party be arraigned upon the declaration, then he shall have no counsell.

Also it was resolved, that when the party who prosecute, suppose that the grand jury will not find the indictment, & therefore requires that the evidence should be given publicly to the jury at Bar (which is sometime done) yet the party who shall be indicted, shall not have counsell. And the Attorney General was commanded to report our opinion to the King; and this hapned to be demanded upon the general inconvenience that might after ensue in the case of the Earl of Bristol, to whom the King had allowed counsell.

[134] MICH. 3 CAR.

1 Croke, 71. Resolves concerning souldiers.

Memorand. That the fifth of November, at Serjeants Inne in Fleet-street, there assembled the Lord Hide, Lord Richardson, Lord Walter, Justice Doderidge, Baron Denham, Justice Hutton, Justice Jones, Justice Whitlock, Justice Harvey, Justice Crook, Justice Yelverton, and Baron Trevor, to consider of a case which was propounded, which was;

One receives presse-money to serve the King in his wars, and is in the Kings wages, and with others is delivered to a conductor, to be brought to the sea-side, and with-draweth himself and runneth away without license.

The question was, if it were felony.

And time being given before to advise concerning it, all agreed besides Croke, Yelverton and myself that it was felony.

And the sole question is, if a conductor be a captain within the 7 H. 7, cap. 1, and the 3 H. 8, cap. 5, and they said, that it is not necessary that he should be such a captain as is to lead and command them in the war, or that hath skill to instruct; but such as hath the leading of them by agreement, between the deputy lieutenants, and them, and that ought to provide for the billeting of them, and to carry them to the place of rendezvous. And one part of a captain is to conduct, although that conduxit be properly to hire a souldier, yet this name conductor, with whom it is so agreed by indenture to conduct the souldiers, is a captain, within the intent of those statutes; and if it should not be so, these statutes (which are for the defence of the realm) shall be of little force.

But it was agreed by them, that if these conductors (which are so called of late times) be hired to carry them but to one place, and there another conductor to receive them, this is not within the statute; and it ought to be such a conductor that can give license upon just cause to depart. It was said, that they used to send captains into the country, but then they were so chargeable to the country, and full of disorder, that upon complaint of the justices of peace, about 43 Eliz. this course was invented, viz. that the deputy lieutenants should provide for them that were pressed, for coats and conduct, and they sent their souldiers to a place appointed to be delivered to certain persons, whom the Queen appointed, to receive them. And it was said, that though the case as it is propounded might be cleer, yet there are many circumstances which ought to be proved and that are left to the discretion of them before that he should be tried.

It was unanimously agreed, that if one takes presse-money, and when he should be delivered over, he withdraw himself, that is not felony, although he is hired and retained to serve.

But my brother Yelverton and Croke & I were of opinion, that this new name newly invented, is not captain within these penall statutes which ought to be taken strictly, vide Plowden, 86, that penalties which concern life shall not be taken by equity, but if they be within the words of the statute, then they shall: as to kill his mistresse, is within the words, for mistresse is master.

Another reason was, that the statutes provide punishment for captains which want of their number, or which pay not their souldiers [135] within six daies after they have received their pay, upon pain of forfeiting all their goods: and the statute did not intend other captains in this point, then was in the former and latter part thereof.

But admitting that a conductor is such a one to whom the souldiers are delivered by indenture with all covenants usuall, viz. to pay to them their wages, and to convey them to their appointed place, and that he may give license to depart, yet they agreed, that it is the better and clearer way that they should be made captains, and so named in the indentures, for the King may change the captain at his pleasure, and then it should be no question.

It was agreed, that 7 H. 7, cap. 1, extends only to them who are retained and pressed to serve the King upon the sea, or upon the land beyond the sea; and the statute of 3 H. 8, cap. 5, adds only the land here: and the statute makes departure without license from the captain felony, and the statute 3 H. 8, without license from the lieutenant: and the Statute of 7 H. 7 makes the tryal to be in the county where they shall be taken before the justices of the shire, as they may try other felonies

within their commission : the Statute of 3 H. 8 makes their tryall before the justices of the county, where they are taken ; and this being a new felony and made tryable against the common law (which appoint tryals by jurors of the county where the fact is committed) and appoint a special Judge, viz. justices of peace, that is only tryable before them, and not before Commissioners of Oyer and Terminer, who cannot try any thing, but that which is done in the same county : but this, if all be not done in that county where they are taken ; makes it tryable only before the justices of peace of the county where they are taken.

In this point all were not resolved, but required longer time, vide 2 Inst. 56.

SIR RICHARD CHAMPNONS CASE.

A fine of Oct. Purif. where the caption was, Feb. 14, 1.

A writ of covenant is prosecuted, Jan. 23, returnable Oct. Purificat. The dedimus potestatem is tested 23 Jan. the Judge certifie the concord taken Febr. 24, which is two daies after the term, at which time the writ of covenant is not depending, the fine is hæc est finalis concordia facta in Oct. Purif. And after it is recorded in 15 Pasch. and yet adjudged a good fine, vide the Statute of 23 Eliz. 3, Dyer, 220 b. *Carels case*.

MICH. 4 CAR.

JONES *versus* POWELL.

Case for nusans.

[S. C. Palmer, 536. See *Fleming v. Hislop*, 1886, 11 App. Cas. 697.]

John Jones plaintiff against James Powell defendant, in an action upon the case for a nuisance, count, that the plaintiff, 10 August, 1 Caroli, was and is, and for forty years last past, hath been possessed for divers years yet during, of a messuage, in which he and his family did by the time aforesaid dwell : and by all that time hath been register to the Bishop of Gloc. and kept his office there, that the said defendant the tenth day of August, and ever since hath held in possession another house over against the plaintiffs ; and they being so possessed, [136] the defendant the said 10 of Aug. erected a brew-house, and a privy in the said house, and burned sea-coles in the said brew-house, so that by the smoke, stench, and unwholesome vapors coming from the said coles and privy, the plaintiff and his family cannot dwell in the said house without danger of their health. Not guilty pleaded, verdict for the plaintiff. The plaintiff prayeth judgment, and doth offer for authorities in this case.

4 Ass. 3, 4 E. 3, 37, 5 E. 3, 47, New Book of Entries, fol. 19, in 5 Jac. between *Smith and Mopham*, an action upon the case for erecting a tan-fat, with averment of corrupting the air and water, to the annoyance of the plaintiff, and adjudged for the plaintiff after verdict.

Coke, lib. 4, *Aldreds case* pleaded in New Book of Entries, fol. 106, an action of the case for erecting a hogsty, ad nocumentum aeris adjudged.

22 H. 6, 14, by Newton, an action upon the case lyeth expressly.

Trin. 29 Eliz. *Bland* against *Mosely*, an action of the case for stopping lights in London, adjudged a void prescription, to build so high that the neighbors lights are thereby stopped in a city.

Old Book of Entries, fol. 406, in the edition 1596, action upon the case brought for annoying a piscary with a gutter that came from a dye-house, 1.

And there an action brought against a dyer, Quia sumos sceditat & alia sordida juxta parietes querentis posuit, per quod parietes putridæ devenerunt, & ob metum infectionis per horridum vaporem, &c. ibid. morari non audebat.

13 H. 7, 26, an action lieth against a glover, because he with a lime-pit so corrupted the water, that the tenants departed.

F. N. B. 185 b. a writ lieth to the major of a city to cleanse the streets from filth, whereby infection might grow.

By which cases it appeareth, that although sea-cole be a necessary fuell to be used,

and that brew-houses are necessary, yet the rule in law is, *sic utere tuo, ut alienum non lædas*: and chimneys, dye-houses, and tan-fats are also necessary, but so to be used, that they be not prejudicial to their neighbors.

And in this case the jury found that this new brew-house and privy was maliciously erected to deprive the plaintiff of the benefit of his habitation and office, and that the plaintiff was hereby damnified, as in the declaration is alledged.

And upon conference and consideration of the case, all the Judges did concur that judgment should be given for the plaintiff. Vide 1 Croke, 510, *que un tallow furace est nusance*.